



COMMERCIAL REGISTRATION AGREEMENT BETWEEN BROKER AND OWNER

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1. PARTIES: The parties to this agreement are:

Owner: _____

Address: _____

Phone: _____ E-mail: _____

Fax: _____ Other: _____

Broker: _____

Address: _____

Phone: _____ E-mail: _____

Fax: _____ Other: _____

2. PROPERTY: "Property" means the following real property in Texas, together with all its improvements and fixtures:

Address: _____

City: _____ County: _____ Zip: _____

Legal Description (*Identify exhibit if described on attachment*): _____

3. REGISTRATION: Broker registers _____

(Prospect) with Owner.

4. TERM: This agreement begins on _____ and ends on _____.

5. BROKER'S FEE: Owner is not obligated to pay Broker a fee until such time as Broker's fee is *earned* and *payable*. Broker's fees are *earned* when Owner enters into a binding agreement to sell or lease all or part of the Property at any price to Prospect or if Owner breaches this agreement. Broker's fees are *payable* in the amounts stated below at the specified times.

A. Sales:

(1) If Owner agrees to sell all or a part of the Property to Prospect at any price on or before the date this agreement ends, Owner will pay Broker a fee equal to:

☐ (a) _____ % of the gross sales price; or

☐ (b) _____.

(2) The fee is payable, either during the term of this agreement or after its termination, at the earlier of:

(a) the closing and funding of the sale or exchange of the Property;

(b) Owner's breach of this agreement; or

(c) Owner's breach of a binding contract to sell the Property to Prospect.

B. Leases:

(1) Primary Lease:

(a) If Owner agrees to lease all or part of the Property to Prospect, on any terms, on or before the date this agreement ends, Owner will pay Broker a fee equal to:

☐ (1) _____ % of all base rents to be paid over the term of the lease and the same percentage of the following items to be paid over the term of the lease: ☐ expense reimbursements, and ☐ _____.

☐ (2) _____

(b) The fee is payable during the term of this agreement or after its termination:

☐ (1) in one payment upon _____.

☐ (2) in two payments as follows: one-half of the fee at the time the lease is executed and the remainder on the date the lease commences.

☐ (3) _____

(2) Renewals: If Prospect leases all or part of the Property and subsequently renews, extends, or expands the lease, (including new leases for more, less, or different space in the same building or complex), Owner will pay Broker a fee equal to:

☐ (a) _____ % of all base rents to be paid over the term of the renewal or extension and the same percentage of the following items to be paid over the same term: ☐ expense reimbursements based on initial amounts ☐ _____;

☐ (b) _____ % of all base rents to be paid over the term of the expansion and the same percentage of the following items to be paid over the same term: ☐ expense reimbursements based on initial amounts ☐ _____; or

☐ (c) _____

In addition to their ordinary meanings, "extensions," "renewals," and "expansions" include new leases for more, less, or different space in the building or complex in which the Property is located. The fees under Paragraph 5B(2) are earned and payable in full at the time the extension, renewal, or expansion commences.

(3) Subsequent Sale to Prospect: If Prospect leases all or part of the Property and Owner later agrees to sell all or part of the Property to Prospect within the term of the lease or within 180 days after the date the lease ends, Owner will pay Broker a fee equal to:

☐ (a) _____ % of the gross sales price; or

☐ (b) _____.

"Sell" means to sell, agree to sell, convey, agree to convey, exchange, agree to exchange, transfer, or agree to transfer a legal or equitable interest (excluding a lease or rental) either by written or oral agreement or by option. The transfer of Owner's interest (stock or shares) in any entity that holds title to the Property for the purpose of conveying the Property to another person is a sale. The fee for a sale under this Paragraph 5B(3) is earned at the time Landlord agrees to sell the Property and is payable at the closing of the sale regardless of whether closing occurs during the term of this Registration or after its termination.

NOTICE: Under Chapter 62, Property Code, Broker is entitled to claim a lien against the Property to secure payment of an earned commission.

6. SPECIAL PROVISIONS:

7. BROKER'S REPRESENTATION:

- A. Owner acknowledges receipt of the attached **Information About Brokerage Services** (TXR-2501) which is incorporated into this agreement for all purposes. During negotiations for the sale or lease of the Property, Broker:
- ☐ (1) will represent Owner only.
- ☐ (2) will represent Prospect only.
- ☐ (3) will act as an intermediary between Owner and Prospect.
- B. If Broker acts as an intermediary, Broker will assist both Prospect and Owner in the sale or lease of the Property. Broker's fees will be paid by Owner as provided in Paragraph 6. Broker may appoint a licensed associate(s) of Broker to communicate with, carry out instructions of, and provide opinions and advice during negotiations to Owner and appoint another licensed associate(s) for the same purposes to Prospect. **As an intermediary, Broker:**
- (1) **may not disclose to Prospect that Owner will accept a price less than the asking price unless otherwise instructed in a separate writing by Owner;**
- (2) **may not disclose to Owner that Prospect will pay a price greater than the price submitted in a written offer to Owner unless otherwise instructed in a separate writing by Prospect;**
- (3) **may not disclose any confidential information or any information Owner or Prospect specifically instruct Broker in writing not to disclose unless otherwise instructed in a separate writing by the respective party or required to disclose the information by the Real Estate License Act or a court order or if the information materially relates to the condition of the Property.**
- (4) **shall treat all parties to the transaction honestly; and**
- (5) **shall comply with The Real Estate License Act.**

8. ADDENDA: Addenda or information that are part of this Registration are:

- ☐ A. Information About Brokerage Services (TXR-2501)
- ☐ B. Property Description Exhibit identified in Paragraph 2
- ☐ C.

9. OTHER:

- A. Entire Agreement: This document contains the entire agreement between the parties and may not be changed except by written agreement.
- B. Notices: Notices between the parties must be in writing and are effective when sent to the receiving party's address, fax, or e-mail specified in Paragraph 1.
- C. Disbursements: All fees to Broker under this agreement are payable in cash in the county in which the Property is located. Owner authorizes Broker to instruct any escrow or closing agent to collect and disburse to Broker at closing the Broker's fees due under this agreement. Paragraphs 5B(2) and 5B(3) survive termination of this agreement. In the event of an exchange or breach of this agreement, the asking price will be the sales price or rental rate(s) for computing Broker's fees.

Registration Agreement concerning: _____

D. **Related Parties:** If a Related Party of Prospect agrees to buy or lease all or part of the Property within the term of this agreement, Broker will be entitled to all compensation under this agreement as if Prospect had acquired or leased the Property. "Related party" means any assignee of Prospect, any family member or relation of Prospect, any officer, director, or partner of Prospect, any entity owned or controlled, in whole or part, by Prospect, and any entity that owns or controls Prospect, in whole or part.

E. **Additional Notices:**

- (1) Broker's fees or the sharing of fees between brokers are not set by law nor fixed, controlled, recommended, or suggested by the Association of REALTORS®, MLS, or any listing service. Broker's fees are fully negotiable. Brokers independently determine their fees.
- (2) If the Property contains a residential dwelling built before 1978, federal law requires the Owner to:
(a) provide the buyer with the promulgated lead hazard information pamphlet; and (b) disclose the presence of any known lead-based paint or lead-based paint hazards.

CONSULT AN ATTORNEY: Broker cannot give legal advice. This is a legally binding agreement. READ IT CAREFULLY. If you do not understand the effect of this Registration, consult your attorney BEFORE signing.

Owner: _____

Broker: _____

By: _____

By (signature):

Printed Name: _____

Title: _____ Date: _____

By: _____

By (signature):

Printed Name: _____

Title: _____ Date: _____

License No. _____

By (signature):

Printed Name: _____

Title: _____ License No. _____

Date: _____